

## 26STCV08156 26STCV08156

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-13

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C510%2C07%2F13%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C07%2F13%2F2026)

Source SHA-256: 60b011f1ad03f4c7ea3e884ab337170727b8660fce02de467eca221c3653f3e5

Case Number: 26STCV08156 Hearing Date: July 13, 2026 Dept: 510

No.

15 - Xanthe Petrossi v. Skyview Apartments LLC

Defendant Skyview Apartment LLC's Motion  
to Strike Portions of Plaintiff's Complaint

Defendant Skyview Apartment LLC moves to strike 13 portions of Plaintiff's complaint. Each challenged portion pertains to Plaintiff's claim for punitive damages.

As

an initial matter, the Court notes that Plaintiff's opposition brief was untimely served on Defendant. Under Code of Civil Procedure section 1005(b), all papers opposing a motion must be served at least 9 court days before the hearing. Here, the opposition papers were served on Plaintiff on June 30, 2026, only 8 court days before the hearing. There is no explanation for this delay in Plaintiff's papers. However, the Court will exercise its discretion to consider Plaintiff's untimely opposition when ruling on this motion.

Courts

may strike allegations that are "not essential to the statement of a claim or defense," "neither pertinent to nor supported by an otherwise sufficient claim or defense," or "[a] demand for judgment requesting relief not supported by the allegations." (Code Civ. Proc., § 431.10(b).) Defendant moves to strike portions of the complaint regarding punitive damages. Courts may strike allegations related to punitive damages where the facts alleged "do not rise to the level of malice, oppression or fraud necessary" to recover punitive damages under Civil Code section 3294. (Turman v. Turning Point of Central

California, Inc. (2010) 191 Cal.App.4th 53, 64.)

Here,

the Court finds that Plaintiff alleges sufficient facts for punitive damages. The complaint alleges that Defendant knew of the safety requirements governing operation of the public pool in its apartment complex. (Compl., ¶ 42(a)-(b).) Despite having six months to inspect and remedy several safety defects, such as lack of signage and inaccessible rescue equipment, Defendant continued to operate the pool. (Id., ¶ 22(b).) Plaintiff alleges that Defendant made the decision “in the interest of maximizing profits while knowingly putting lives of tenants, residents, and persons at the SUBJECT PROPERTY in danger of severe injury or death.” (Id., ¶ 42(c).) It alleges “Defendants, in knowingly or recklessly creating said substantial risk and high probability of injury or death to tenants, residents, and other persons at the SUBJECT PROPERTY, was oppressive, despicable, highly reprehensible, and done in the conscious disregard for the rights and safety of tenants, residents, and other persons at the SUBJECT PROPERTY, including Decedent EDWIN PETROSSI and Plaintiff.” (Id., ¶ 42(f).)

The

Court cannot conclude that, as a matter of law, these allegations do not suffice to constitute malice as “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others” (Civ. Code, § 3294, subd. (c)(1)) or oppression as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights” (id., subd. (c)(2)).

Defendant

also argues Plaintiff does not allege sufficient facts to hold a corporate entity liable for punitive damages. Civil Code section 3294(b) provides that for a corporation to be liable for punitive damages, “the advance knowledge and conscious disregard [of an employee’s unfitness], authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” Under this provision, “punitive damages can properly be awarded against a corporate entity as a principal, because of an act by its agents, if the corporate employer authorized or ratified wrongful conduct.” (Pulte Home Corp. v. American Safety Indemnity Co. (2017) 14 Cal.App.5th 1086, 1124.)

Plaintiff

alleges sufficient facts for ratification. Plaintiff alleges that the underlying conduct was ratified by “managerial employees of said Defendants, and were carried out with the consent of their officers, directors, and/or managing agents.” (Compl., ¶ 42(f).) Though lacking detail, this text constitutes a sufficient allegation of ultimate fact and suffices for liability under Civil Code section 3294, subdivision (b) at the pleading stage.

However, punitive damages are only recoverable under Plaintiff’s fourth cause of action for “survival action.” (See CCP § 377.34(a) [“In an action or proceeding by a decedent’s personal representative or successor in interest on the decedent’s cause of action, the damages recoverable are limited to the loss or damage that the decedent sustained or incurred before death, including any penalties or punitive or exemplary damages that the decedent would have been entitled to recover had the decedent lived . . . .”].) Punitive damages are generally unavailable for a wrongful death negligence claim. (See CCP § 377.61 [“In an action [for wrongful death], damages may be awarded that, under all the circumstances of the case, may be just, but may not include damages recoverable under Section 377.34.”].) Therefore, the Court will strike references to the recovery of punitive damages that appear under Plaintiff’s wrongful death, negligence-based claims.

#### Disposition

#### Defendant

Skyview Apartment LLC’s motion to strike portions of Plaintiff’s complaint is granted in part.

#### The

Court strikes the following allegations: the phrase “As such, the imposition of punitive damages against Defendants SKYVIEW and DOES 1 through 50, inclusive, and each of them, is appropriate” located in paragraphs 22(f) and 37(d) of the complaint. Defendant is to file its answer to the complaint within 21 days.